



POLICE DEPARTMENT

May 2, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Taiwo Miller
Tax Registry No. 906841
Patrol Borough Queens South
Disciplinary Case No. 2008-762

The above-named member of the Department appeared before me on January 25, 2011, charged with the following:

1. Said Police Officer Taiwo Miller, assigned to the Queens South Evidence Collection Unit, while off-duty, on or about April 11, 2007, at a location known to this Department, in the County of [REDACTED], did engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Police Officer was involved in a verbal dispute, with a person known to the Department.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT–PROHIBITED
CONDUCT

2. Said Police Officer Taiwo Miller, assigned to the Queens South Evidence Collection Unit, while off-duty, on or about April 11, 2007, at a location known to this Department, in the County of [REDACTED], did engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Police Officer, having been involved in an off-duty incident, did thereafter neglect to report said incident, as required.

P.G. 212-32, Page 1, Paragraphs 1 & 2 – OFF DUTY INCIDENTS

3. Said Police Officer Taiwo Miller, assigned to the Queens South Evidence Collection Unit, while off-duty, on or about April 11, 2007, at a location known to this Department, in the County of [REDACTED], did fail and neglect to safeguard his off-duty firearm, a Kahr 9.

P.G. 204-08, Page 2, Paragraph 7 – FIREARMS – GENERAL REGULATIONS
UNIFORMS AND EQUIPMENT

4. Said Police Officer Taiwo Miller, assigned to the Queens South Evidence Collection Unit, while off-duty, on or about April 11, 2007, at a location known to this Department, in the County of [REDACTED], did engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Police Officer did endanger the welfare of a child, in that said Police Officer did fail to safeguard his off-duty firearm, a Kahr 9, and where said firearm was accessible to minor children living in the home.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT-PROHIBITED
CONDUCT

The Department was represented by Vivian Joo, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Guilty to one of the subject charges and pleas of Not Guilty to the remaining charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty of Specification No. 2. The Respondent is found Guilty of Specification Nos. 3 and 4. It is recommended that Specification No. 1 be Dismissed.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that on April 11, 2007, the Respondent, who was off-duty, was still [REDACTED] to Person A [REDACTED] ("Person A [REDACTED]" although they have since [REDACTED] and that he and Person A [REDACTED] resided together at their residence in [REDACTED] [REDACTED] County,

County, New York along with their children, 18-year-old Person B 16-year-old Minor C and 13-year-old daughter Minor D Person B boyfriend at that time was Person E

The Department's Case

The Department called Sergeant Neithra Vincent as its only witness.

Sergeant Neithra Vincent

Sergeant Vincent, who is assigned to the Queens South Investigations Unit, testified that on April 24, 2007, the Internal Affairs Bureau (IAB) Command Center received a call-out log from the County Police Department (PD) notifying the Command Center that PD had received a report from County Child Protective Services (PS) that on April 11, 2007, one of the Respondent's children, Minor D had obtained possession of his firearm. Vincent was assigned to investigate this allegation that the Respondent had failed to safeguard his firearm and also allegations that the Respondent had engaged in a verbal dispute with his Person A at their residence, that he had failed to notify IAB about that dispute, and that he had endangered the welfare of a child. Vincent learned that PS ultimately dismissed inadequate guardianship charges against the Respondent which stemmed from Minor D obtaining his firearm. PS removed the Respondent from their Child Protective Services report and they only indicated inadequate guardianship against Person A

A second call-out regarding the Respondent occurred on May 31, 2007, when the Respondent's sister-in-law Person F called and reiterated the same allegations that were contained in the original call-out log.

Vincent interviewed Person A on September 19, 2007, via telephone but she refused to allow him to record the interview and she was uncooperative in that she did not want to answer any questions. She told Vincent that she and the Respondent had engaged in a verbal dispute on April 11, 2007, about finances but that what had occurred between her and the Respondent was private and should stay between them and she did not want to speak about any of the allegations.

Vincent conducted an official Department interview of the Respondent and asked him questions about where he stored his off-duty firearm, a Kahr K9. He stated that he stored it in a locked bedroom closet on the top shelf. He also stated that the firearm was not stored inside a container but that he secured it with a trigger lock and that there was no ammunition in the firearm. He stated that he stored ammunition for the firearm in the closet. Vincent also asked him questions about the dispute that he had with his Person A on April 11, 2007. He agreed that the dispute was over finances. He said that during the argument he became concerned about the whereabouts of his firearm because Person A had threatened to kill him in the past or threatened his life in the past, so he decided to look for his off-duty firearm. The Respondent told Vincent that Minor C Minor D and Person E went looking for the firearm with him and that Person E returned the off-duty firearm to him after he found it inside Person A car.

Vincent conducted a second official Department interview of the Respondent to clarify certain statements he had made at his first official Department interview. Vincent had obtained a petition that had been filed in Court. This Court petition stated that Minor D had found the firearm. At this second official Department interview, the Respondent explained that although Minor D had spotted the firearm inside Person A

car, [Minor D] never actually possessed the gun and that [Person E] had picked up the firearm and brought it to him. Vincent opined that the Respondent had failed to safeguard his firearm because someone else was in possession of his firearm, which had not been locked in any sort of a container which would have prevented someone from removing it.

On cross-examination, Vincent agreed that the trigger lock prevents the firearm from being loaded and fired by anyone who does not have the key to unlock the trigger lock. Vincent confirmed that he never asked [Minor C] [Minor D] or [Person E] whether they had access to the key to unlock the trigger and Vincent never looked at the firearm. Vincent agreed that a trigger lock locks through the trigger guard and prevents a finger from being placed in to pull the trigger backwards. A trigger lock also additionally insures that no ammunition can be loaded into the gun so that it can be fired in another manner. Vincent agreed that the Department asks members to use trigger guards and trigger locks to safeguard their firearms.

Vincent confirmed that his investigation concluded that [Person A] took his firearm and hid the gun inside her car. To his knowledge, no ammunition was recovered from inside the car. Vincent confirmed that he read in the Child Protective Services report that after this incident on April 11, 2007, the Respondent took his [REDACTED] and moved out of the residence for their safety and his own safety.

Vincent confirmed that the last time he had any contact with [Person A] was in December, 2007. Vincent agreed that nothing he discovered during his investigation led him to believe that there was anything other than an argument over money that began this incident. Vincent also agreed that nothing he discovered during his investigation led him

to conclude that the Respondent had acted inappropriately toward Person A in trying to protect himself and his [REDACTED]

He tried to speak to Person F about her allegations but the telephone numbers that were provided were not good and the only residence information he had for her was that she lives somewhere in Florida.

Vincent confirmed that Child Protective Services withdrew their initial finding of neglect against the Respondent and decided to place no evidence in front of the administrative law judge to make a determination. No one ever stated to him that the children had complained about feeling unsafe being with their father. Vincent testified that his investigation showed that the actions of the Respondent endangered the welfare of his children because someone was able to obtain his off-duty firearm and remove it from the closet.

The Respondent was not arrested for endangering the welfare of a child. Vincent confirmed that he spoke to Person E about him picking up the firearm. No one Vincent spoke to knew when it was that the firearm "went missing." It was found in Person A vehicle underneath one of the car seats according to the [REDACTED] Court petition and the case worker's notes. It was found on April 11, 2007, about 10 to 15 minutes after the search for it began. Vincent did not know when it was removed from the closet shelf.

The Respondent's Case

The Respondent testified on his own behalf.

The Respondent

The Respondent testified that he was appointed to the Department on February 28, 1994, and after completion of training at the Police Academy, he was assigned to the 113 Precinct where he was a training officer and served in the Street Narcotics Enforcement Unit until 2005 when he was assigned to anti-crime duties at Queens South Borough. After two years there, he was assigned to the Queens South Evidence Collection Team, processing DNA and fingerprint evidence, where he has served for the past three years. His current duty status is full duty.

In April, 2007, he engaged in authorized off-duty employment as the owner of a restaurant located in [REDACTED]. His [REDACTED] Person A helped out at the restaurant and was paid for her work.

On April 11, 2007, he and Person A were home when she told him that she wanted to be paid more money for her work at the restaurant. When he told her that he could not pay her more because he was reinvesting the proceeds in the business, she "got real violent" and told him that if he did not pay her more money she would "kill" him. This was the first time that she had ever threatened him in 14 years of [REDACTED]. She became more irate and told him, "I'll blow your fucking head off." At that point, he became nervous and he asked himself, "Where's my gun?" He then went to look for his off-duty firearm which he was safeguarding at that point in time by storing it in his closet. He had a key lock on the firearm which passed through the trigger [guard] and into the magazine chamber of the weapon which rendered the gun inoperable. The cable was tied through the magazine, through the trigger [guard], and then locked. He

possessed two keys which could unlock that cable. He attached one to the key ring for his vehicle keys.

During his argument with Person A the key ring for his vehicle keys was on his person. He testified that the other key was probably inside his locker at the 105 Precinct. When he decided that he needed to find his gun, he wanted to make "sure that" Person A "couldn't get anywhere around the room, so I basically held her down." He "just laid on top of her." He testified that he weighs 285 pounds. Since he was holding her down so that she could not reach the firearm, he "had my [REDACTED] look for the gun." He had never discussed gun safety with his [REDACTED], he had never shown them his firearm and he had never previously told them where he stored it. Only Person A knew where he stored his firearm.

When he asked his [REDACTED] to look for the firearm, "they just started looking." The Respondent testified that the [REDACTED] asked Person A "Mommy, Mommy, where's Daddy's gun? Where's Daddy's gun?" While he was holding Person A down, she "was going crazy." She screamed, "I'll kill you. Let me up, let me up, I'll kill you." After his [REDACTED] had been looking for the firearm for about five or ten minutes, he heard the kids coming up the stairs. His [REDACTED] Person B boyfriend Person E who was 18 or 19 years old, handed him his firearm, which was not loaded, and told him that they had found it underneath the driver's seat inside Person A car, which only she used. The Respondent then told the kids, "Let's go." They all left the house and went to a hotel. He explained that he "went to a hotel to get my senses and figure out what I'm going to do." He did not contact anyone in the Department to let them know what had just transpired because he "felt that it was a personal matter" and "just something that we

would handle amongst ourselves.” He never went back to the house other than to pick up his belongings.

A week or two later, he was contacted by [REDACTED] PS with regard to Minor D finding the firearm. He cooperated with [REDACTED] PS and he notified the Department that he was being investigated by [REDACTED] PS. He challenged their findings and the charge that he had been neglectful was dismissed. He has not had any contact with Person A for the past three years. They [REDACTED] She contested the [REDACTED] She owes him child support payments. He never asked his [REDACTED] whether any of them had handled his firearm on April 11, 2007.

On cross-examination, he confirmed that his off-duty firearm is “a Kahr 9” and that he stored it on the top shelf of his closet on April 11, 2007. It was not stored inside a locked container. The magazine containing bullets for the firearm were stored separately from the firearm but they were also stored in the closet.

On April 11, 2007, after his [REDACTED] threatened him, he went to look for his gun because he thought that his [REDACTED] was going to go get his gun. When he went to look for it at that moment, he discovered that it was missing. When Minor D located his gun in his [REDACTED] car and Person E turned it over to him, he realized that his [REDACTED] had removed it from the closet and put it in her car.

He confirmed that he had filed a petition against his [REDACTED] on May 2, 2007, seeking an Order of Protection. He agreed that there had been previous incidents in which his [REDACTED] acted violently toward him. He recalled that one time she broke a window at his restaurant and on another occasion she had broken his car window because he would not

take her to the bank. He conceded that despite these violent incidents, he continued to store his firearm in his closet even though his [REDACTED] was aware that he stored it there.

FINDINGS AND ANALYSIS

Specification No. 1

It is charged that the Respondent, while off-duty on April 11, 2007, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department in that he was involved in a verbal dispute with his [REDACTED] Person A inside their residence.

Since this charge implicitly alleges that the Respondent's dispute with his [REDACTED] Person A inside their home was purely verbal in nature, I recommend that this charge be dismissed because a verbal argument between an off-duty member and his spouse inside their home does not rise to the level of actionable misconduct.

Even though the Respondent testified at this trial that he had pinned Person A down on the floor by placing his 285 pounds of bodyweight on top of her, thereby changing a purely verbal dispute into a physical altercation, I am constrained to recommend that this charge be dismissed because the Department did not charge him with engaging in a physical altercation.

Therefore, it is recommended that Specification No. 1 be Dismissed.

Specification No. 2

It is charged that the Respondent, while off-duty on April 11, 2007, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department in that,

having been involved in an off-duty incident, he neglected to report the incident, as required. The Respondent, having pleaded Guilty to this charge, is found Guilty.

Specification No. 3

It is charged that the Respondent, while off-duty on April 11, 2007, failed and neglected to safeguard his off-duty firearm, "a Kahr 9."

The Respondent conceded that he was storing his off-duty firearm, a Kahr K9, on the top shelf of his closet on April 11, 2007, and that it was not inside a locked container. Although the Respondent asserted that he had installed a key lock on the firearm which passed through the trigger [guard] and into the magazine chamber of the weapon thereby rendering the gun inoperable, a practice which Vincent confirmed the Department recommends, this claim is belied by his testimony (discussed in detail below) that he pinned her down on the floor so that she could not get access to the place where she had hidden his firearm. If the firearm had actually been trigger-locked, there was no reason for him to hold her down. Moreover, he failed to store his firearm inside a locked container which would have better safeguarded it. If the Respondent had stored his firearm inside a locked container, **Person A** would not have been able to remove the Respondent's firearm from the closet shelf, carry it outside the house, and hide it inside her car.

Therefore, based on the Respondent's own testimony, the Respondent is found Guilty of Specification No. 3.

Specification No. 4

It is charged that the Respondent, while off-duty on April 11, 2007, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department by endangering the welfare of a child, in that he failed to safeguard his off-duty firearm, "a Kahr 9," and the firearm was accessible to minor [REDACTED] living in the home.

Vincent confirmed that [REDACTED] PS dismissed inadequate guardianship charges against the Respondent which stemmed from a claim that his [REDACTED] Minor D had obtained his firearm from underneath the driver's seat of [REDACTED] Person A car. Nonetheless, I find that the Respondent's own testimony establishes that he engaged in conduct prejudicial to the good order, efficiency and discipline of the Department on April 11, 2007, in relation to his [REDACTED] s ability to access his firearm.

Initially, I would note that the Respondent's claim that his firearm was always trigger-locked with a cable is belied by his testimony that when his [REDACTED] specifically threatened that she would "blow your fucking head off," he became concerned that she had obtained possession of his off-duty firearm; that when he went to look for it on the top shelf of the closet where he stored it, he discovered that it was missing and he realized that his [REDACTED] had removed it because only she knew that it was stored there; and that he believed that he could not personally search for his firearm because he had to hold [REDACTED] Person A down so that she could not reach out for his firearm. This testimony is inconsistent with the Respondent's claim that his firearm was always trigger-locked.

The Respondent admitted that he directed his [REDACTED] "to look for the gun." He issued this direction despite the fact that he had never discussed gun safety with his [REDACTED]. Also, since he admitted that he had never shown his firearm to his [REDACTED]

they did not even know what his firearm looked like. Thus, if Person A had obtained her own loaded firearm and hidden it along with his firearm underneath the driver's seat of her car, Minor D and Person E could have been endangered if Person E had picked up Person A firearm under the assumption that it was the Respondent's firearm.

However, to reach a finding that the Respondent engaged in conduct prejudicial to the good order, efficiency and discipline of the Department in relation to his [REDACTED]'s ability to access his firearm, I need only cite the Respondent's own testimony regarding the discovery of his firearm. The Respondent recalled that after his [REDACTED] had been looking for his firearm for about five or ten minutes, he heard the [REDACTED] coming into the house and that his [REDACTED] Person B boyfriend Person E who was only 18 or 19 years old, handed him his firearm and told him that he had removed it from underneath the driver's seat of Person A car.

It is clear from the Respondent's own description of the recovery of his firearm that Person E had removed the firearm from under the car seat and then, joined by the Respondent's [REDACTED] had carried it in his hand as he walked from the car parked on the street into the house and up the stairs. The Respondent's position that having Person E and his [REDACTED] look for his firearm posed no danger to them because there was a key lock on his firearm, ignores the fact that he placed them in potential danger just by telling them to find and bring him his firearm. The Respondent testified that while he was holding Person A down, she "was going crazy" screaming, "I'll kill you! Let me up, let me up, I'll kill you!" Thus, the Respondent could easily have foreseen the possibility that Person A murderous screaming could have caused neighbors to call 911 resulting in the response of armed, uniformed patrol officers to the front of the residence. If the

timing of Person E action of taking the firearm out of the car and carrying it in his hand in open view from the street and then, accompanied by the [REDACTED] into the house had unfortunately coincided with the arrival of police at the scene, the resulting confrontation could have been deadly for Person E. Just by telling his [REDACTED] to go look for his firearm, the Respondent potentially endangered their safety.

Therefore, based on the Respondent's own testimony, the Respondent is found Guilty of Specification No. 4.

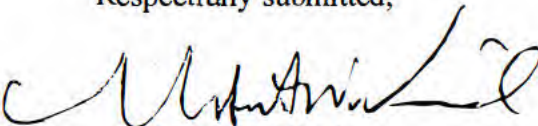
PENALTY

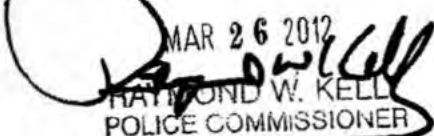
In order to determine appropriate penalties, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

The Respondent was appointed on February 28, 1994. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Assistant Department Advocate recommended that the Respondent be required to forfeit 25 vacation days as a penalty. However, having examined the facts and circumstances surrounding the Respondent's misconduct, I recommend that the Respondent forfeit 30 vacation days.

Respectfully submitted,


Robert W. Vinal
Assistant Deputy Commissioner - Trials

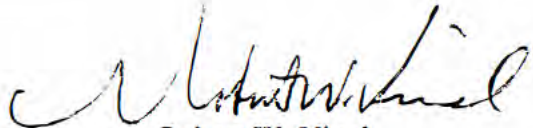
APPROVED
MAR 26 2012

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER TAIWO MILLER
TAX REGISTRY NO. 906841
DISCIPLINARY CASE NO. 2008-762

The Respondent received an overall rating of 4.5 on his 2010 performance evaluation, 4.5 on his 2009 evaluation, and 4.0 on his 2008 evaluation. He has been awarded two Meritorious Police Duty medals and nine Excellent Police Duty medals. [REDACTED] He has no prior formal disciplinary record.

For your consideration.


Robert W. Vinal
Assistant Deputy Commissioner Trials